RAMBAM'S LAWS OF REPENTANCE - HILCHOT TESHUVAH

When God Hardens a Heart: Pharaoh, Addiction & the Loss of Teshuvah

Hilchot Teshuvah Perek 6

Sefer: Mishneh Torah, Hilchot Teshuvah (The Rambam's Laws of Repentance)

Chapter: 6 (complete)

Shiur: Given by Dayan Daniel Kada on Zoom, Tuesday 19 November 2024 (week of Parashat Chayei Sarah)

These notes are based on the Sofer.ai transcript of the recording.

Introduction: Free Will, Part Two

Chapter 5 established that we have free will. Chapter 6 deals with the **verses that seem to contradict it**. By coincidence, or perhaps not ("I would like to believe that it was Hashem who did this"), the Monday night class had just reached **Rav Saadiah Gaon's** treatment of free will in *Emunot VeDeot*, Essay 4. So this shiur repeatedly contrasts the Rambam with Rav Saadiah, who quotes the very same verses about 200 years earlier.

הרבה פסוקים יש בתורה ובדברי נביאים שהם כמו סותרים עיקר זה, ונכשלים בהן רוב בני אדם

There are many verses in the Torah and the Prophets that seem to contradict this principle, and most people stumble over them.

People conclude from them that God decides whether a person does good or evil. The Rambam says: **"I will lay down a great principle"** through which all of them can be understood.

Part 1: How Consequences Work (Halacha 1)

Every action has consequences, and Hashem knows how each person will receive them. But the Torah gives basic guidelines.

Three kinds of consequence *in this world*

Through	Includes
בגופו, the body	Physical suffering, and perhaps mental suffering too
בממונו, possessions	Financial loss
בבניו הקטנים, young children	Children below bar/bat mitzvah age are, halachically, like a person's "possessions," since he is fully responsible for them (the Torah even lets a father marry off a minor daughter). Once they reach adulthood (*ish*), they bear their own consequences

And *when*

Some sins are punished…
in **this world** only
in **the World to Come** only (Gehinnom, *karet*: Chapter 8)
in **both**

Aside: "Baruch she-petarani"

At many bar mitzvahs, after the boy's aliyah, the father says **ברוך שפטרני מעונשו של זה**, "Blessed is He who has released me from this one's punishment."

- The Rabbi said it is not found in the Talmud. It was introduced by Rishonim, mainly in Europe, on the idea that one is responsible for those under one's influence. The **Rema** codifies it, and Ashkenazi poskim debate whether to say it with Hashem's name. It is not in the Shulchan Aruch.

- It was **never a Sephardi custom**. The **Spanish & Portuguese siddur**, "always the authentic tradition from the last 400–500 years," does not contain it; some Sephardim adopted it only recently.

- **And according to this halacha, it is backwards.** The Rambam says *children* suffer for their *parents'* sins, not the other way round. If anything, **the child** should thank Hashem that he is no longer liable for his father's sins.

Part 2: Teshuvah as a Shield (Halacha 2)

> **במה דברים אמורים? בשלא עשה תשובה. אבל אם עשה תשובה, התשובה תריס בפני הפורענות. וכשם שאדם חוטא לדעתו ומרצונו, כך הוא עושה תשובה לדעתו ומרצונו**

When does this apply? When he has not repented. But if he repented, teshuvah is a **shield** against punishment. And just as a person sins knowingly and willingly, so he repents knowingly and willingly.

Why a "shield"? Recall Chapter 1: teshuvah alone does not always complete the atonement. Some sins need teshuvah plus Yom Kippur; some need teshuvah, Yom Kippur and suffering or death. So if someone ate non-kosher food and repented, full atonement waits for Yom Kippur, but **in the meantime his teshuvah shields him** from further consequences.

Part 3: The Worst Punishment: Teshuvah Withheld (Halacha 3)

ואפשר שיחטא אדם חטא גדול או חטאים רבים, עד שיתן הדין לפני דיין האמת שיהיה הפרעון מזה החוטא על חטאים אלו שעשה ברצונו ומדעתו, שמונעין ממנו התשובה, ואין מניחין לו רשות לשוב מרשעו, כדי שימות ויאבד בחטאו

A person may commit a great sin, or many sins, until the True Judge decrees that his punishment for the sins he did willingly is that **teshuvah is withheld from him**, and he is not given leave to return from his wickedness, so that he dies and is lost in his sin.

Something new

Chapter 4's 24 impediments made teshuvah hard, even "almost impossible," but Halacha 4:6 insisted that **nothing actually prevents it**. Here is a completely new idea: for some, teshuvah is **actively blocked**. "That perhaps is the greatest punishment that there is."

The verses

- **Yeshayahu 6:10**: **השמן לב העם הזה ואזניו הכבד ועיניו השע... ולבבו יבין ושב ורפא לו**: "Make the heart of this people fat, their ears heavy, shut their eyes... lest they understand with their heart, **return, and be healed**." In the Rambam's reading, they have reached such an abyss that Hashem says: *I do not want them to return.*
- **Divrei HaYamim II 36:16**: they mocked prophet after prophet **עד עלות חמת ה' בעמו עד לאין מרפא**, "until Hashem's anger rose against His people, **without healing**": the healing of teshuvah was taken away.

Pharaoh

ולפיכך כתוב בתורה ואני אחזק את לב פרעה, לפי שחטא מעצמו תחילה והרע לישראל הגרים בארצו... נתן הדין למנוע התשובה ממנו עד שנפרע ממנו

Therefore the Torah says "I will harden Pharaoh's heart": because he sinned first of his own accord and did evil to Israel, who lived in his land... justice decreed that teshuvah be withheld from him until he was punished.

All the Rishonim wrestle with this: if Hashem hardened his heart, where was Pharaoh's free will, and why was he punished?

The Rambam's reading:

- In **plagues 1–5** the Torah says **Pharaoh hardened his own heart**.

- Only in **plagues 6–10** does it say **Hashem hardened his heart**.

- The second is the *consequence* of the first. Hashem did not make Pharaoh *sin*; He made him **not reconsider**, so he would receive what he deserved.

In the **Shemonah Perakim** (Chapter 8) the Rambam adds that just as Hashem can take away a person's sight or the movement of his hands (Yeravam's hand froze in the air; the men

around **Lot's house were struck blind**, in last week's parasha), He can take away a person's **appetite and desire for teshuvah**.

The source is the **Midrash Shemot Rabbah**: Hashem blocked teshuvah from Pharaoh after giving him five chances, and Pharaoh's heart became "heavy as liver."

Three approaches to "I will harden Pharaoh's heart"

	Rav Saadiah Gaon	The Ramban	The Rambam
Meaning	**Physical** strength: Hashem kept Pharaoh alive and well through the plagues, so they could run their course and Israel leave in splendour	After five clear plagues, Pharaoh no longer had a free choice; he would have released them out of compulsion. Hashem **restored the balance (50/50)** so that his choice stayed free	Hashem **took away his will to repent**, as a punishment for freely chosen sins
Free will in plagues 6–10?	Untouched; the verse is not about it	Preserved, by the hardening	**Gone**, yet he is still responsible
Difficulty	The verse says Pharaoh's **heart** ("I haven't seen anyone else who gives this interpretation")		Why send Moshe again? (below)

The key: addiction

How can Pharaoh be responsible for plagues 6–10 if he no longer had free will? The Rabbi's answer: **think of addiction.**

Imagine someone so addicted to nicotine that, theoretically, on Shabbat he truly *cannot* refrain from lighting a cigarette. "God may say to him: you really had no choice… **but you will still be culpable. You put yourself in that situation.**"

One bad choice leads to the next until the way out is closed, and the person is responsible for all of it.

"Oh what a tangled web we weave…"

The Rabbi likes the proverb **"Oh what a tangled web we weave, when first we practise to deceive"** because it explains a verse in Parashat Kedoshim: **לא תכחשו ולא תשקרו**. As a commentator (possibly **Rabbi David Pardo**) explains:

לא תכחשו: don't *deny*. The first lie is a free choice -

ולא תשקרו: don't then weave a *web* of lies to cover it. By then you may feel "I have no choice, or I'll be caught." Perhaps so. But you put yourself there -

The same with **yichud**: the Torah forbids secluding oneself with a forbidden woman. If, having chosen to be there, a person says in the moment "I couldn't control myself," perhaps true, but "you can't turn around later and say it's not my fault."

Question: then why keep sending Moshe?

If Hashem had blocked Pharaoh's teshuvah, what was the point of plagues 6–10? (For Rav Saadiah and the Ramban, Pharaoh was still free, so there is no problem.)

Answer: to **show the world** that when Hashem withholds teshuvah, the person *cannot* return. By the seventh plague even Pharaoh's servants said, "Can't you see this is the hand of God?" Any sane king would have relented. The Rabbi compared today: 16 million Jews in a world of 8.1 billion, and people still imagine the Jews dominate the world. "It's difficult for people to get past their biases... But there comes a stage where you see things over and over again." Pharaoh's refusal, time after time, **demonstrated** that he no longer had the choice.

"So the Rambam turns the whole story on its head. Everyone is asking what happened to free will... The Rambam is saying: actually, **he didn't have free will**, and that was just."

Sichon, the Canaanites, and Eliyahu

The Rambam applies the same principle to:

- **Sichon**, whose heart Hashem hardened so he would not let Israel pass. **Difficulty:** the Torah records no earlier sin of Sichon's against Israel. Either the Rambam had a source, or it is his own inference.

- **The Canaanites**: had they repented and surrendered they would have been spared; Hashem "strengthened their hearts" to go to war because of their sins.

- **Israel in the days of Eliyahu**. Eliyahu says on Har HaCarmel: **ואתה הסבת את לבם אחורנית**, "You have turned their hearts backwards."

	Rav Saadiah	The Rambam
ואתה הסבת את לבם אחורנית	So troubled by it he **adds a *heh***, reading it as a question: by allowing this miracle (the fire from heaven), *You will turn* their backward hearts back to You	Plain meaning: You **closed teshuvah** from the most wicked of them
השמן לב העם הזה (Yeshayahu)	Entirely **physical**: weaken them, take away their faculties, so they lose in war	Withholding teshuvah

The Rambam's conclusion, and a difficulty

נמצאת אומר שלא גזר האל על פרעה להרע לישראל, ולא על סיחון לחטוא בארצו... אלא כולם חטאו מעצמן, וכולם נתחייבו למנוע מהן התשובה

So God did not decree that Pharaoh harm Israel, nor that Sichon sin in his land... They all sinned of their own accord, and all became liable to have teshuvah withheld.

The Rabbi raised a difficulty: by removing the desire to repent, isn't Hashem *indirectly* causing Pharaoh to keep harming Israel? A participant suggested it is "just the direct aspect" the Rambam denies. The Rabbi agreed: **not directly**, and that is the best plain reading. Indirectly, the effect is the same.

Part 4: What We Pray For (Halacha 4)

ולפיכך שואלין הצדיקים והנביאים בתפלתן מאת ה' לעזרם על האמת, כמו שאמר דוד: הורני ה' דרכך

Therefore the righteous and the prophets ask Hashem in their prayers to help them to the truth, as David said: "Teach me, Hashem, Your way."

If we have free will, what does "teach me Your way" mean? It means: **don't block me from returning.** After the sin with Bat Sheva, David prays **ורוח נדיבה תסמכני**, "support me with a generous spirit": despite my sin, don't take away my chance. "Of course, it's my choice at the end. But I'm asking you: don't block me out."

Part 5: "He Guides Sinners on the Way" (Halacha 5)

טוב וישר ה', על כן יורה חטאים בדרך (Tehillim 25:8)

If we have free will, how does Hashem "guide" sinners?

1. **Through messengers**: He sends the Torah and the prophets to urge us toward good. "Ultimately, it's up to us."

2. **Through how He made us**: "Again the same idea, addiction." When you choose good, you come to want more good. **One good choice leads to the next**; that is the "help" given to whoever comes to purify himself. The mirror image of Pharaoh.

Part 6: The Egyptians and the Covenant (Halacha 5, end)

The question

At the **Brit Bein HaBetarim** (in Lech Lecha, two weeks earlier) Hashem told Avraham **ועבדום וענו אותם**, "they will enslave them and afflict them." So the Egyptians were *decreed* to do it. Why punish them? And at the end of the Torah, Moshe says "I know that after my death you will act corruptly" and serve idols. Where is free will?

The Rambam's answer

Hashem stated **what will happen in general, not who will do it.** As in the Shemonah Perakim: when the Torah says a certain sinner is stoned, it doesn't mean anyone *must* commit that sin. As **כי לא יחדל אביון מקרב הארץ**, "the poor will never cease from the land," doesn't decree that any particular person must be poor.

Each individual Egyptian **could have chosen not to harm** Israel. Hashem never told any particular Egyptian he must.

A follow-up question

"Imagine Egypt had a million people, and each one chose not to harm Israel. Theoretically possible. What would happen to the covenant?" Unlike "there will always be poor people," here Hashem promised a specific outcome.

The Rabbi's answer (with **Mark**): the nature of human society is that **you never have a society where everyone is perfect.** Every individual Egyptian was free, but Hashem was telling Avraham how the world actually runs. "I think that is the reading of the Rambam."

The Ra'avad: "childish words"

The **Ra'avad** is scathing here, calling the Rambam's words, in effect, **childish**. He asks exactly that question: if every Egyptian chooses good, what happens to the decree?

A further answer: they did *more* than decreed

The other approach the Rabbi cited: the Egyptians *were* meant to subjugate Israel; that was the covenant. **They were punished for the excess**: the cruelty and the glee. "Did you have to do it with that intensity?"

The Rabbi compared the **Stanford prison experiment** (1970s): volunteers role-playing as guards began, within about two weeks, to *enjoy* abusing the "prisoners." "Okay, this is your experiment, you have to do it. But now I am taking enjoyment in it, I am doing more than I need to." That is what the Egyptians were punished for.

Summary

1. Consequences come through body, possessions or young children; in this world, the next, or both (Halacha 1). The bar mitzvah blessing *Baruch she-petarani* is a later Ashkenazi custom, absent from the Spanish & Portuguese siddur, and arguably backwards.
2. **Teshuvah is a shield** while full atonement is pending (Halacha 2).
3. The gravest punishment is that **Hashem withholds teshuvah** (Halacha 3). Pharaoh hardened his own heart for five plagues; then Hashem hardened it. Like an addict, he lost the choice, and was still responsible because he put himself there.
4. Rav Saadiah (physical strength), the Ramban (restoring the balance) and the Rambam (withdrawing teshuvah) read the verses very differently.
5. "Teach me Your way" means "don't shut me out." "He guides sinners" means the Torah and prophets, and the momentum of good choices (Halachot 4–5).
6. The Egyptians: the decree was general, every individual was free. The Ra'avad objects; another answer is that they were punished for exceeding the decree.

Coming Up

Chapter 7 next week: how teshuvah brings us close to Hashem, leading into **Olam HaBa**. Because teshuvah is about our identity and the reality we create for ourselves, the Rambam moves on to the World to Come, *karet* and Gehinnom: "the full theological picture of what the afterlife consists of."

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